

Court No. - 37

Case :- WRIT - C No. - 6655 of 2020

Petitioner :- M/S Gangwar Industries And Another

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arpit Agarwal, Akash Gupta

Counsel for Respondent :- C.S.C., Kapil Dev Singh Rathore

Hon'ble Abhinava Upadhyay, J.

Hon'ble Shamim Ahmed, J.

Heard learned counsel for the petitioners, learned Standing Counsel appearing for the State-respondent no.1 and Sri K.D.Singh Rathore, learned counsel appearing for respondents no.2 and 3.

By means of this writ petition the petitioner has challenged the recovery certificate dated 29.1.2020 for a sum of Rs. 22,13,873/- till June, 2019 as electricity dues.

Learned counsel for the petitioner submits that the petitioner's permanent Connection No. 300000904 was disconnected on 6.6.2018 and the bill raised for the month of May, 2018 was Rs.4,86,000/- and odd and thereafter the bill for the month of May, 2018 was again sent but for a different amount, i.e. Rs. 5,00,000/- something. Thereafter, another bill was given to the petitioner for the month of June, 2018 for a sum of Rs.9,00,000/- and odd and again bill was given to him for the month of July, 2018 for a sum of Rs.13,00,000/- and odd. Now the last bill given to the petitioner was for Rs.7,00,000/- for the month of December, 2019 but the recovery certificate has been issued by the Executive Engineer-respondent no.3 on 29.1.2020 for more than Rs.22,00,000/-.

Sri Rathore, learned counsel appearing for the respondents submits that the petitioner has already approached the Executive Engineer under Section 6.5 of the Electricity Supply Code, 2005 where the matter is still pending and the petitioner is not providing the

documents that are being asked for by the Executive Engineer.

The writ petition is disposed of with the direction that the petitioner will appear before the Executive Engineer in the next week on any working day with all the necessary documents for the verification of the bills and the receipts of payment made by the petitioner along with the certified copy of this order and the Executive Engineer will thereafter pass an appropriate order within a period of one month, in accordance with law.

For the aforesaid period, no coercive action shall be taken against the petitioners pursuant to the recovery citation dated 29.1.2020 (annexure-13 to the writ petition).

Order Date :- 25.2.2020

SKM

(Shamim Ahmed,J.) (Abhinava Upadhya,J.)